

Court No. - 39

Case :- WRIT - C No. - 5549 of 2016

Petitioner :- Daya Shanker

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Preetpal Singh

Counsel for Respondent :- C.S.C., Shivam Yadav

Hon'ble Dilip Gupta, J.

Hon'ble Mukhtar Ahmad, J.

The petitioner claims to have been provided electricity connection under the Kutir Jyoti Programme of the Union Government for providing electricity to persons below the poverty line. The petitioner is aggrieved by the bill that has been raised by the Executive Engineer of Madhyanchal Vidyut Vitran Nigam Limited of the Electricity Distribution Corporation, Budaun. According to the petitioner the bill is highly excessive and even for the period of disconnection of the electricity.

In effect the petitioner is disputing the entire bill.

Sri Shivam Yadav, learned counsel appearing for the respondents, however, states that the petitioner has a statutory alternative remedy available under Clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005.

The aforesaid Clause permits the petitioner to raise a dispute regarding excessive bill.

In this view of the matter, it will not be appropriate for the Court to, in the first instance, examine the correctness of the bill issued by the respondents.

The writ petition is, accordingly, dismissed with liberty to the petitioner to avail the statutory alternative remedy.

Order Date :- 9.2.2016

GS

(Dilip Gupta, J.)

(Mukhtar Ahmad, J.)